the visitors would be allowed to proceed to enter and to take their seats in the gallery. The accused saw themselves as ‘political prisoners’. This status mattered to them. It went to the very heart of who they were and what they lived for. Beaten up in court, manacled and flung back into their jail cells on the orders of the president of the tribunal without being allowed to sing their revolutionary song, the accused boycotted the tribunal proceedings after 12 May 1930. Sukhdev turned up on 13 May 1930 to have a look but did not return to court after that. On 21 June 1930, Agha Haider was removed from the special tribunal.

On 25 June 1930, orders were passed by the tribunal to dispense with the attendance of the accused. This was under powers conferred by the ordinance. It was something Jinnah had fought hard to avoid. In the Hunger Strike Bill, there was a clause allowing dispensation of the accused. In his speech on 12 September 1929 in the Delhi Central Assembly, Jinnah had lambasted the Governor-General with the words, ‘Does it come to this, that you want to carry this Bill, you want to have this Bill placed on the Statute-book, and then you want to give notice to the prisoners that, unless they cease their hunger-strike within a certain period, you are going to proceed *ex parte*? Under that threat you think the prisoners will cease their hunger-strike?’[9] Jinnah had stopped that bill from passing with his stellar oratory in the Central Legislative Assembly. The ordinance, now passed by Governor-General Irwin, secured for the government by executive edict that which it could not have achieved by normal legislative means. With the accused now moved from the dock back into jail, a cold uncanny spectre descended upon the empty courtroom in Poonch House. The defence counsel were there, but without their clients to defend they did not know what to do. The new Indian judge, Sir Abdul Qadir, who had replaced the formidable Agha Haider, recognizing the absurdity of their situation nervously suggested to the defence counsel that although they were now without instructions from their clients, they could still attempt to cross-examine the crown witnesses and then interview their clients the next day and take instructions in that way, little realizing how this only added farce to an untenable situation, which had been created entirely through the actions of Justice Coldstream.